

Ramdas Giri v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ - C No. 42558 of 2019 · **Writ disposed of; relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A Division Bench declined to quash an Executive Engineer's demand notice and a Sub Divisional Magistrate's attachment order where the consumer disputed only the correctness of the electricity bill. Clause 6.5 of the U.P. Electricity Supply Code, 2005 was treated as an available statutory remedy. The writ was disposed of with liberty to apply under Clause 6.5 within two weeks, a direction to decide by speaking order after hearing within 30 days, and a stay of coercive action for 40 days or until that decision, whichever is earlier.

FACTUAL SUMMARY

Ramdas Giri, a consumer in District Etah, filed a writ petition seeking certiorari to quash a demand notice dated 26 August 2019 issued by the Executive Engineer and an attachment order of the same date passed by the Sub Divisional Magistrate, Sadar, Etah. His grievance was that the electricity bill raised against him was incorrect. Counsel for the Electricity Department appeared. The Court did not examine the bill or the attachment on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — Clause 6.5 statutory remedy

HOLDING

Where the consumer disputes the correctness of an electricity bill, a writ to quash the demand notice and attachment order will not be entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. If the consumer applies to the appropriate authority within the time allowed, that authority is to decide the objection by a speaking order after hearing, and no coercive action is to be taken until that decision or the stay period expires, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court refused to entertain the writ because Clause 6.5 of the Supply Code was an available statutory remedy for a dispute as to bill correctness. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The consumer's challenge to the Executive Engineer's demand and the SDM's attachment was sent to the Clause 6.5 authority rather than decided on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE 26.08.2019 DEMAND NOTICE AND ATTACHMENT ORDER

Left to the Clause 6.5 authority to decide on merits by a speaking order after hearing. ¶ 1